

BEFORE THE  
FEDERAL MARITIME COMMISSION

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DOCKET NO. 25-08

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Formuclean, Inc.

Complainant,

v.

Top Shipping Systems, Corp.

Respondent.

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**RESPONDENT'S MOTION FOR EXTENSION OF TIME TO  
RESPOND TO CLAIMANT'S MOTION FOR SUMMARY JUDGMENT**

Comes Now the Respondent and would respectfully request an extension of time to respond to the Motion for Summary Judgment until August 5<sup>th</sup>, 2025, and as grounds would state the following:

1. This Motion is made under 46 U.S.C.A.502.12.
2. Counsel did not appear in the case until July 22, 2025.
3. The Response is due on July 31, 2025.
4. The Respondent is seeking an extension of time until August 5, 2025 in order to file its response as Counsel has only been of record for a week.
5. The Rules allow for a Response within 15 days and August 5, 2025 would be within 15 days of Counsel having appeared in the case.
6. It is not felt that the Claimant will be prejudiced as it is early in the case and no discovery has even begun on this matter.

7. The undersigned apologizes for not having filed this Motion earlier, that is 7 days before the due date.
8. An email was sent to the Claimant's representative to see if an agreement could be reached, but the opposing party was not in agreement.

Wherefor the Respondent makes this its Motion for an Extension of time to respond to the Motion for Summary Judgment.

Dated: July 28th, 2025

#### **CERTIFICATE OF SERVICE**

I certify that on the 28<sup>th</sup> day of July, 2025, a true and correct copy of the foregoing Notice of Service was hereby served by electronic mail upon the party of record for the Complainant, in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

Served to:  
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Respectfully submitted,

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